



File No.: EXP202405033

## RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on February 26, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 26, 2024, a complaint was received by this Agency presented by Mr. A.A.A. (hereinafter, the complainant) against SANTANDER CONSUMER FINANCE, S.A. (hereinafter, the respondent) for not having duly attended to his right of erasure.

The complainant states that on December 14, 2023, he submitted a request for the erasure of his data to the respondent through its platform, receiving an email from the respondent on January 12, 2024, in which "(...) we inform you that due to the complexity of the situation presented and in accordance with Article 12.4 of the General Data Protection Regulation, we extend the deadline for responding to the exercise of the right of erasure by one month."

He notes that, after this, on February 9, 2024, he received a new notification from the respondent in the same terms, informing him that they were extending the deadline for obtaining a response to his request by an additional month.

The complainant states that he has not received any subsequent response and considers this an unjustified delay, as more than 60 days have passed since his request.

He provides a copy of the email dated December 14, 2023, which notifies the receipt of the request sent to the respondent through its web form.

SECOND: In accordance with Article 65.4 of the LOPDGDD, this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of this transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on April 10, 2024, as recorded in the acknowledgment of receipt in the file.

There is no record in this Agency that any response has been submitted.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on May 26, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days, it could present any allegations it deemed appropriate.

The respondent has indicated that "(...) Mr. A.A.A. submitted a written request to the Company on December 14, 2023.

At the moment the Company receives the aforementioned right, it proceeds to process it in accordance with the internal procedure. Once the Request has been examined, Santander Consumer verified the following circumstances:

(i) Upon receiving the Request from the Company, it proceeded to manage it in order to analyze the situation of the Complainant. After analyzing the risk situation, it was concluded that the request could be positively resolved, marking all the consents that were marked as yes, to no, and subsequently anonymizing the request.

(ii) It is necessary to note that the Company responds to the Complainant on January 12, 2024, informing that due to the complexity of the situation presented and in accordance with Article 12.4 of the GDPR, the deadline for responding to the right of Erasure is extended by one month. This is because the anonymization of the request is not carried out immediately (Document No. 1).

(iii) Likewise, on February 9, 2024, the Company responds to the complainant, informing that due to the complexity of the situation presented and in accordance with Article 12.4 of the GDPR, the deadline for responding to the right of Erasure is extended by one month. This is because the anonymization of the request is not carried out immediately (Document No. 1).

(iv) Finally, on March 5, 2024, the Company sends the following response to the Complainant, favorably addressing the request for the right of erasure and thus resolving it (Document No. 2).

(...) We inform you that, in response to your request, it has been noted in the corresponding records. Similarly, we inform you that your personal data has been blocked, being retained only for compliance with the legal obligations to which we are subject, remaining exclusively available to Judges and Courts for addressing possible claims by the competent authorities for a maximum period of 10 years until its definitive erasure. (...)

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, he can formulate allegations.

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that it considers appropriate, stating, in summary, that it does not deny that its request for erasure was resolved on March 5, 2024.

“(...) Even though the data has been deleted, the appearing party still does not understand and has not seen a logical justification supported by the Law regarding the 'complexity' of the request, especially considering it is a data erasure.

(...) In view of the statements sent to this Agency, I consider that Santander Consumer Finance, S.A., has unnecessarily delayed the erasure of my personal data.”

FIFTH: After granting a hearing to the responding party, it stated that the claimant was informed of the reasons for the extension of the deadlines for addressing their right.

“(...) And this complexity arose from the internal change process that was being executed in the Company regarding the anonymization procedure for the proper management of the right to erasure, whose objective was nothing other than to transition from a manual process to an automated process. To this effect, it is worth adding that the delay in exercising the right was not a discriminatory act against the Claimant, but rather a generalized issue, since, to fulfill the requests, a chain was initiated based on the request for authorizations and, consequently, the granting of permissions that implied that in order to ensure the meticulous and cautious management of the exercise of the right through anonymization, it had to be done manually.

(...)

Santander Consumer wishes to inform this Control Authority, to which we respectfully address, that such circumstances would have been made available to the Claimant if they had requested any additional information or clarification from the Company, which did not occur as Mr. A.A.A. directly went to file a complaint with the AEPD, despite the fact that my represented party, at all times, complied with the obligations contained in the former Article 12.4 of the GDPR.

In short, it is duly evidenced that Mr. A.A.A.'s right has been adequately addressed prior to the transfer of his complaint, that the Company has acted in accordance with the Law, which implies, respectfully stated, that the complaint presented cannot be admitted for processing, all in accordance with the provisions of Article 65.2 of the LOPDGDD.”

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each control authority and as established in Articles 47, 48.1, and 64.1 of the

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LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

## II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and to demonstrate that the necessary response had been provided to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on May 26, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

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Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

## III

### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the

GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to address such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

#### IV

##### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

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c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and no other legitimate grounds for the processing prevail, or the data subject objects to the processing pursuant to Article 21, paragraph 2;

d) the personal data have been unlawfully processed;

e) the personal data must be erased to comply with a legal obligation under Union or Member State law applicable to the data controller;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any link to those personal data, or any copy or replication of them.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

a) for exercising the right to freedom of expression and information;

b) for compliance with a legal obligation requiring processing under Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impede the achievement of the objectives of that processing, or

e) for the establishment, exercise, or defense of legal claims."

#### V

##### Conclusion

In the case analyzed here, from the examination of the documentation provided during the processing

of this procedure, it has been established that the complainant exercised their right to erasure before the respondent, and that the latter, after two extensions of the deadline for addressing the right, communicated to the complainant on March 5, 2024, once the present file was initiated, that their data was blocked.

The respondent based its extension on the provisions of Article 12 of the GDPR, which, in paragraphs 3 and 4, establishes that

“(…) 3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, and in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.

4. If the data controller does not act on the request of the data subject, it shall inform them without delay, and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedies.”

(The emphasis is ours)

However, there is no documentary evidence that allows us to consider that the respondent indicated the reasons for the delay to the complainant, and the generic information “(…) due to the complexity of the situation raised in your writing” where the alleged complexity is not detailed is not acceptable. Nevertheless, these reasons have been specified in the arguments presented before this Agency. Taking the above into account, since the extension of the deadline for resolving the requested exercise has not been justified, it must be considered that the right was addressed once the legally established deadline had elapsed, and therefore, it is appropriate to uphold, for formal reasons, the complaint filed, without requiring additional actions by the data controller to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against SANTANDER CONSUMER FINANCE, S.A. However, a new certification by the respondent is not warranted, as the response was issued late, and no additional actions by the controller are required.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to SANTANDER CONSUMER FINANCE, S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution shall be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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